

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN

Thorwin Properties
1274 Archibald Street
Winnipeg MB R2J 0Z3

LANDLORD

AND

E. Rosner
10 - 585 Corydon Avenue
Winnipeg MB R3L 0P3

TENANT

ADDRESS OF RENTAL UNIT: 10 - 585 Corydon Avenue, Winnipeg MB R3L 0P3

ORDER

The landlord applied for an order fixing the value of a reduction or withdrawal of service under Section 138 of The Residential Tenancies Act.

After considering the information received, it is ordered that the value for the withdrawal of Storage Facilities / Laundry is fixed at \$128.00 per month. The tenant's rent will be reduced by \$128.00 per month beginning February 1, 2024.

* Please note that this will not affect your usual rent increase date.

THE RESIDENTIAL TENANCIES BRANCH

1700 - 155 Carlton Street
Winnipeg, Manitoba R3C 3H8
Telephone: 204-945-2484
e-mail: david.maclean@gov.mb.ca
Toll-Free: 1-800-782-8403

DATED THIS 2nd day of April, 2024



D. Maclean
Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than Monday, April 22, 2024. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

File Number: SWL-2024-000070

Reasons for Decision

Address of Residential Complex: **10-585 Corydon Avenue, Manitoba**

The landlord applied to the Residential Tenancies Branch on January 25, 2024, for a withdrawal of service (laundry facilities and storage) under section 138(1) of the *Residential Tenancies Act*. The landlord requested that the Washer and Dryer be transferred to the tenant's responsibility. The landlord also requested that storage be transferred to the tenant's responsibility. The landlord proposed to decrease the rent by \$0.00 effective April 1, 2024.

When considering an application for changes related to services, the Branch considers the following:

- (a) The charge incurred for replacement of the services being discontinued;
- (b) Documentation provided by landlords and tenants; and
- (c) Cost of replacing the services

Laundry

The Branch was informed that the tenants paid \$2.25 for a wash and \$2.00 (\$4.25) for the dryer. The Branch's believes on average that 3 loads of laundry per week is a fair amount for a tenant to need.

The calculation the Branch uses to assign a value on the laundry facilities is as follows: $\$4.25$ (cost of one load of laundry) $\times$ 3 (amount of loads per week) $\times$ 52 (weeks in a year) / 12 (month's in a year) = $\$55.25$ (cost to tenant to use the laundry per month).

The Branch contacted three local laundromats that were within an hour walking distance of the tenant's residence. The average cost for a wash was \$4.42. The average cost to use the dryer was \$2.42, for a total of \$6.84. Using the Branch's calculation the cost to use a private laundromat is \$88.92. The difference between what the tenant's cost's were (\$55.25) and what they are potentially now (\$88.92) is \$33.67.

Storage

The tenant's storage area was calculated as 7.5 feet (90 inches) by 5 feet (60 inches) by 5 feet (60 inches) or 187.5 cubic feet. The landlord calculated it as 8.7 feet high by 4 feet wide by 5 feet long or 174 cubic feet.

The Branch contacted five storage facilities in the area closest to the tenant. The amounts for a similar sized storage unit were given in monthly rates of \$103.00, \$75.00, \$87.00 and \$130.00 & \$77.00 for an average of \$94.40